

2:00 PM

LINE 3

24-CIV-01894

EDWARD YOUNG VS MAINSPRING ENERGY, INC.

EDWARD YOUNG
MAINSRING ENERGY, INC.

VICTORIA B. RIVAPALACIO
HEATHER M. SAGER

COMPLIANCE HEARING

TENTATIVE RULING:

On October 28, 2025 (with written order filed November 21, 2025, this court approved of the settlement in this Class Action and Private Attorney's General Act (PAGA) case and the court set a compliance hearing for September 1, 2026.

On August 16, 2026, Madely Nava of Apex Class Action LLC (Apex), the settlement administrator, filed a declaration setting forth the work that Apex performed to disburse the settlement funds, and to comply with its obligations under the settlement agreement and this court's order.

All disbursements have been made and the time for cashing the checks has passed. (Nava Decl., ¶¶ 2-11. The declaration states:

12. As of the date of this declaration, a total of \$17,368.82 remains uncashed following the check cashing deadline. In accordance with the settlement agreement approved by the Court, the necessary paperwork to transfer the uncashed checks to the California State Controller's Office - Unclaimed Property Fund has been submitted.

13. Per the State Controller's Office of Unclaimed Property – Dormancy Periods, Apex shall hold the uncashed funds for one (1) year from the date of the notification, at which point Apex will then be able to transmit the unclaimed amounts in the Class Member's name. Apex estimated all unclaimed property from this settlement shall be distributed to the State by approximately June 2027.

(Nava Decl., ¶¶ 12, 13.) Thus, except for the disbursement of any unclaimed property to the State, everything has been done to effectuate the settlement. Since the court has the responsibility to make sure that Apex distributes the unclaimed property to the State, the court sets another compliance hearing for August 24, 2027 at 2:00 p.m. in Department 4 with a compliance report/declaration filed and served five court days before the hearing.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the

ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 4

24-CIV-02856

NENAD MILANOVIC, ET AL. VS. ALICIA CHAN, ET AL.

NENAD MILANOVIC
ALICIA CHANMATTHEW D. HALEY
STEPHEN C. TOSCHI

SPECIAL MOTION TO STRIKE PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 425.16 (Anti-SLAPP)

TENTATIVE RULING:

The Special Motion to Strike Pursuant to Code of Civil Procedure Section 425.16 (Anti-SLAPP) by Defendant Yuk Hon Chan (“Defendant”) to the Second Cause of Action for Invasion of Privacy – Intrusion Upon Seclusion in the Third Amended Complaint of Plaintiffs Emma Milanovic, et al. (“Plaintiffs”), is GRANTED.

Although this Motion also purports to be brought on behalf of Defendant Alicia Chan (“Alicia”), the Second Cause of Action is not alleged against her. As such, no cause of action exists against her to strike, and the court limits its ruling to Defendant.

Background

Plaintiffs and Defendant are former next door neighbors. On August 10, 2022, Plaintiff Emma Milanovic (“Emma”), who was four years old at the time, was outside playing with her family when Alicia started to back her vehicle out of the garage at her property where Emma was sitting on the driveway. Alicia struck Emma with her vehicle. Plaintiffs bring this action for the injuries sustained by Emma as well as the rest of the family that observed the accident.

The Third Amended Complaint (“TAC”) filed on May 19, 2026 is the operative pleading. The TAC added a Second Cause of Action for Invasion of Privacy – Intrusion into Private Affairs. This cause of action alleges that on September 17, 2022, without Plaintiffs’ knowledge or consent, Defendant stood in the upstairs bedroom of his home and secretly recorded video and photographs of Plaintiffs in their backyard/back deck. (TAC, ¶ 41.) The TAC alleges that Defendant’s intentional, surreptitious recording and photographing of Plaintiffs while in their backyard/back deck of their residence without their knowledge or consent, intruded upon their seclusion. (TAC, ¶ 39.) At the time Defendant recorded Plaintiffs, Plaintiffs were engaged in ordinary, intimate family life. (TAC, ¶ 42.) Defendant later disseminated this secret video and photographs to his State Farms claims adjuster, admitting that his purpose in capturing and disseminating the video was to show that Emma seemed to have recovered well and to communicate that assertion to the insurance carrier. (TAC, ¶ 44.) Defendant further acknowledged that he was not directed by anyone to take the video and photographs. (*Ibid.*) Plaintiffs allege on information and belief that Defendant took the video and photograph for the primary purpose of attempting to minimize the injuries sustained by Plaintiffs. (TAC, ¶ 45.)
